

TENTATIVE RULINGS**6/25/2026****02:00 PM**

100	BOLANOS vs. NEWPORT FAB, LLC, a Delaware Limited Liability Company 2022-01280696	Final Accounting The settlement administrator, Phoenix Settlement Administrators, has confirmed that the distribution of the settlement funds has been completed and made in accordance with the terms of the settlement that were approved by the Court. As Plaintiffs have shown that the administrator's work is complete, the Court's file may now be closed. Plaintiffs are ordered to give notice of this ruling to Defendants.
101	Pham vs. Nguoi Viet News, Inc. 2020-01157868	Final Accounting The settlement administrator, CPT Group, Inc., has confirmed that the distribution of the settlement funds has been completed and made in accordance with the terms of the settlement that were approved by the Court. As Plaintiffs have shown that the administrator's work is complete, the Court's file may now be closed. Plaintiffs are ordered to give notice of this ruling to Defendant.
102	Southern California Edison Company vs. California State Board of Equalization 2025-01534286	Demurrer to Answer Plaintiff Southern California Edison Company's demurrer to Defendant California State Board of Equalization's ("Board") answer is SUSTAINED in part and OVERRULED in part. (Code Civ. Proc. [CCP], § 430.20, subd. (a).) Defendant shall have leave to file and serve a first amended answer within 14 days of notice of this ruling. As a threshold matter, the Court finds that Defendant's demurrer was not timely filed per Code. As Defendant points out (ROA #61 [Opp.], p. 7), CCP section 430.40(b) requires demurrers to answers to be filed and served within 10 days after service of the answer. Here, the answer was served electronically on 2/19/2026, so 10 days + 2 court days for electronic service thereafter is 3/3/2026. Plaintiff counters that CCP section 430.41(a)(2) granted Plaintiff "an automatic 30-day extension" to file the demurrer because "the parties were unable to meet and confer at least 5 days before the date the responsive pleading is due." (ROA #65 [Reply], pp. 3-4.) However, Plaintiff also acknowledges that the statute requires Plaintiff to "fil[e] and serv[e], <i>on or before the date on which a demurrer would be due</i> , a declaration stating

under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer.” (*Id.*, citing CCP, § 430.41(a)(2).) Yet Plaintiff did not file or serve such a declaration before 3/3/2026. (*Id.*)

However, the Court exercises its discretion under CCP section 473(a)(1) to consider Plaintiff’s late-filed demurrer. (CCP, § 473(a)(1) [“the court may, in furtherance of justice, and on any terms as may be proper, . . . enlarge the time for . . . demurrer”]; *McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 282, internal quotes omitted [“The trial court may exercise this discretion so long as its action does not affect the substantial rights of the parties”].) As Plaintiff contends (Reply at p. 5), Plaintiff’s brief 7-day delay in filing the demurrer has not affected Defendant’s substantial rights, and Defendant has not been prejudiced or alleged any prejudice from the delay, especially given that Defendant agreed to meet and confer with Plaintiff over the demurrer on 3/4/2026, which was after the deadline for filing, and Defendant had over 90 days to prepare its opposition to the demurrer in light of the hearing date.

1st (failure to state facts) and 7th (lack of jurisdiction) affirmative defenses – OVERRULED. Neither “an objection that the pleading does not state facts sufficient to constitute a cause of action” nor “the objection that the court has no jurisdiction of the subject of the cause of action alleged in the pleading” must be pleaded in the answer, as these objections are not waived if not pleaded in the answer. (CCP, § 430.80, subd. (a).) Accordingly, these objections are not “true” affirmative defense that raises new matter as to which facts must be alleged in support. In context, these “defenses” are better interpreted as Defendant merely reserving the right to file a statutory motion for judgment on the pleadings. (See CCP, § 438, subds. (c)(1)(B)(i)-(ii); see also *Rancho Santa Margarita v. Vail* (1938) 11 Cal.2d 501, 543 [defendant’s characterization of a matter as an “affirmative defense” in its answer is not controlling].)

3rd through 6th affirmative defenses (laches, waiver, estoppel, res judicata, collateral estoppel, judicial estoppel, and law of the case) – SUSTAINED. Defendant bears the burden of proving laches, waiver, estoppel, and res judicata/collateral estoppel. (*Green v. Bd. of Dental Examiners* (1996) 47 Cal.App.4th 786, 793, internal quotes omitted [“the party asserting and seeking to benefit from the laches bar bears the burden of proof” on delay and prejudice resulting from delay]; *Eisen v. Tavangarian* (2019) 36 Cal.App.5th 626, 647 [“The party seeking to establish an affirmative defense of waiver or estoppel bears the burden of proof”]; *Casad v. Qualls* (1977) 70 Cal.App.3d 921, 927 [“The burden of proof is on the party asserting the defense of res judicata”]; *Chacon v. Litke* (2010) 181 Cal.App.4th 1234, 1251 [“The party asserting collateral estoppel bears the burden of establishing the[] requirements”]; *Kelsey v. Waste Management of Alameda County* (1999) 76 Cal.App.4th 590, 597-598 [defendant asserting application of judicial estoppel bears burden of proof]; see also generally Evid. Code, § 500 [“Except as otherwise provided by law, a party has the burden of proof as to each fact the existence or nonexistence of which is essential to the claim for relief or defense that he is asserting”].) Here, the answer alleges zero facts in support of these affirmative defenses.

		<u>8th affirmative defense (statute of limitations) – SUSTAINED.</u> “There are two ways to properly plead a statute of limitations: (1) allege facts showing that the action is barred, and indicating that the lateness of the action is being urged as a defense and (2) plead the specific section and subdivision.” (<i>Martin v. Van Bergen</i> (2012) 209 Cal.App.4th 84, 91; see also CCP, § 458 [“In pleading the Statute of Limitations it is not necessary to state the facts showing the defense, but it may be stated generally that the cause of action is barred by the provisions of Section ____ (giving the number of the section and subdivision thereof, if it is so divided, relied upon) of the Code of Civil Procedure. . . .”].) Here, Defendant’s answer did neither: It asserts no facts whatsoever as to this defense and also fails to identify a specific statute of limitations at issue. Plaintiff shall give notice.
103	Interface Rehab, Inc. vs. 4545 Shelley Court Opco, LLC 2025-01501797	1. Demurrer to Complaint 2. Motion to Strike Portions of Complaint 3. Case Management Conference 1. Demurrer Defendants’ demurrer to Plaintiff’s complaint is OVERRULED. (Code Civ. Proc. [CCP], § 430.10, subds. (e), (f).) Defendants shall file and serve an answer, if any, within 14 days. On a demurrer, a complaint “must be liberally construed, with a view to substantial justice between the parties.” (CCP § 452; <i>see also Redfearn v. Trader Joe’s Co.</i> (2018) 20 Cal.App.5th 989, 996.) “A demurrer tests the legal sufficiency of the factual allegations in a complaint.” (<i>Redfearn v. Trader Joe’s Co.</i> (2018) 20 Cal.App.5th 989, 996.) The court must determine “whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense.” (<i>Ibid.</i>) The court assumes “the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded[,] and matters of which judicial notice has been taken.” (<i>Ibid.</i>) “‘[I]f upon a consideration of all the facts stated it appears that the plaintiff is entitled to any relief . . . , the complaint will be held good, although the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged.’” (<i>Chase Chemical Co. v. Hartford Accident & Indemnity Co.</i> (1984) 159 Cal.App.3d 229, 242, quoting <i>Matteson v. Wagoner</i> (1905) 147 Cal.739, 742.) “Erroneous or confusing labels attached by the inept pleader are to be ignored if the complaint pleads facts which would entitle the plaintiff to relief.” (<i>Saunders v. Cariss</i> (1990) 224 Cal.App.3d 905, 908; <i>see also Martinez v. City of Clovis</i> (2023) 90 Cal.App.5th 193, 262 [considering claim under different label because “courts examine the entire complaint and are not limited by the labels and structure used in the pleading”].)